

Trimco (Bangladesh) Company Limited

Policy No- 01

Leave Policy- SOP

Effective Date: 1 January 2023

Note: Policy can be amended as and when required

1.1 Basic Principles

- A. All employees shall, under normal circumstances, be entitled to leave as designed in the leave policy. However, when exigencies of service so required, the Management may refuse or revoke sanctioned leave of any description. Certain types of leave are considered as right. Leave year shall be counted January 01 to December 31.
- B. The submission of a leave application does not provide right for leaving the office. All employees should ensure that leave is granted before enjoying the leave. otherwise, it will be considered as leave without permission. In such case, salary will be deducted for such leave with an amount of penalty equivalent of salary of number of days absent without permission. In case of frequent irregularities with leave without permission

1.2 Take Leave Permission

The submission of a leave application does not provide right for leaving the office. All employees should ensure that leave is granted/approved before enjoying the leave. Otherwise, it will be considered as leave without/unauthorize permission. In such case, annual leave (EL) or Leave Without Pay (If EL balance not available) will be deducted for such leave without permission. In case of frequent irregularities with leave without permission, HR Department may show cause and impose correction measured in consultation with management.

1.3 Submission of Leave Application

Staff will be required to submit his/her leave application with mentioning contact details during leave period to his/her Reporting Manager at least 01 (one) working day (without emergency case/sudden/unforeseen circumstances) before proceeding leave. In case of genuine emergency, Casual Leave may be granted on the same day for which it is required. If any employee fails to apply in advance for Casual Leave due to reasons of genuine emergency, he/she must still communicate to his/her reporting manager & HR department on the same day as leave is taken, explaining his/her reasons for the absence. The Reporting Manager must communicate/inform to HR Department that it is approved by him. If the employee fails to show the genuine reason for taking prior approval of leave, it should be considered as annual leave (EL) or Leave Without Pay (If EL balance not available).

This is to ensure that staff can be contacted in case of any emergency. HOD while approve his/her leave, must mention who will be responsible for individual's pending task while on leave.

Applications (Sick & Emergency Casual Leave) for regularization of absence must be submitted within 2 working days on the date of joining in the office without any excuse whatsoever. Within two days if the application is not submitted, in such case, annual leave (EL) or Leave Without Pay (If EL balance not available) will be deducted.

1.4 PREFIX & SUFIX

If someone takes a CL/SL/EL/ML as a prefix with Govt. holiday and subsequently as suffix after a Govt. holiday, then total tenure will be counted as CL/SL/EL/ML.

The HR Department may show cause and impose penalty in consultation with management.

1.5 TYPES OF LEAVE

The following types of leave are available for the Trimco (BD) Co. Ltd. employees:

- a) Casual Leave
- b) Sick Leave

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- c) Annual Leave
- d) Maternity Leave
- e) Compensatory leave
- f) Duty Leave
- g) Special leave
- h) Festival Holidays

a. Casual Leave

i. Policy Statement:

Leave to be taken at the will of the employee & subject to approval of the authority is called casual leave. Every employee to meet his/her personal obligation, emergency situation and or an unforeseeable situation of personal nature may request for leave of absence from his/her work which is adjusted from casual leave. Such request should be in response to serious personal needs rather than that for occasional time off to rest or relax.

ii. Entitlement:

Every employee shall be entitled to casual leave with full salary or wages for 10 (ten) days Casual in a calendar year, with a prorated entitlement for employees who join during the calendar year, whether or not confirmed after probation.

iii. Leave Terms and Procedures:

- **Maximum Limit**

Except for extenuating circumstances or emergencies, Casual Leave cannot be taken for more than 3 (three) consecutive days at a time

- **Before or after Weekly/Festival Holiday**

The employee can take the Casual leave before or after the weekly leave or festival leave. In that case, the weekly or Festival leave shall not be considered as Casual leave. However, if the weekly or festival leave falls into the Casual leave, the leave shall be included in the original leave.

Casual leave cannot be interposed between other leave or holidays but can be prefixed or suffixed to other leaves of holidays.

- **Annual fraction calculation**

The employee can enjoy the leave proportionately if he/she joins the workplace in any part of the year. If for any reason any staff member who has been granted advance CL beyond the pro-rata entitlement leaves the group/company before completion of a full year of service, the excess CL will be treated as leave without pay.

- **Excess Leave**

Any genuine absence beyond 3 days of sanctioned casual leave period (other than due to sickness duly certified by doctor) will be first adjusted from Annual leave and after exhausting annual leave it will then be adjusted from Casual Leave and after exhausting both the leaves, it will be treated as leave without pay.

If sanctioned casual leave is extended by an employee without the approval of the competent authority, then the entire period of casual leave availed of will be treated as Annual leave subject to its availability and then Leave without pay (If EL not available).

If any staff avails Casual Leave more than entitlement, the additional number of day(s) of Casual Leave availed, shall be adjusted from remaining Annual Leave (if any) with prior notification. If the balance of Annual Leave is not available or

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sufficient for necessary adjustment, the number of day(s) Casual Leave availed, shall be adjusted as Leave Without Pay (LWP) with prior notification.

- **Carry Forward**

The balance of unused casual leave it will not be carried forward to the next calendar year and any unused balance of casual leave is not cashable at the end of a calendar year or upon leaving the company.

b. Sick Leave

i. Policy Statement:

Absence caused, due to personal illness or any injury from an accident out of or during the course of employment is adjusted from an employee's sick leave entitlement as paid leave. Advance taking leave for any physical treatment or doctor appointment/consultancy, or any diagnostic will also be considered as Sick Leave.

ii. Entitlement

Every employee shall be entitled to sick leave with full salary or wages for a total period of 14 (fourteen) days in a year. Pro-rata basis applicable who join during the calendar year, whether or not confirmed after probation.

iii. Leave Terms and Procedures:

- Sick leave is granted on the recommendation of Registered Medical Practitioner which requires the physician to examine the employees before making such recommendation. Physician's recommendation for Sick Leave must be forwarded to the Management by the employee immediately after the physician has so recommended. A sick employee must strictly follow physician's advice on rest and medication.
- **Medical certificate**
Sick leave of more than 2 days shall be allowed unless a Registered Medical physician certifies or Physician's Advice on examination that the concerned employees is sick and needs leave as mentioned in the certificate for his/her treatment. The concerned employee must submit his/ her medical certificate to the Direct Report Manager immediately on their return to work to obtain the necessary leave approval from him/her and others, following the standard approval path. When approving Sick Leave, the Direct Report Manager must verify the medical certificate, endorse it and forward it to HR Department for its records.
- **Weekly & Festival Holiday**
If the weekly or festival leave falls into Sick leave, the leave shall be included in the original leave.
- **With Annual Leave:**
Sick leave cannot be taken immediately before or after annual leave to provide an extended leave period. If an employee falls sick during annual leave, he must first avail his entire annual leave before applying for sick leave.
- **Excess Leave**
In case of serious prolong illness or if no adequate medical leave is available to the credit of an employee, then the leave applied for on medical grounds (backed by a medical certificate) may be adjusted against his/her first annual & then casual leave after exhausting his sick leave to cover the absence on account of illness.
- **Carry Forward**

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The balance of unused sick leave it will not be carried forward to the next calendar year and any unused balance of casual leave is not cashable at the end of a calendar year or upon leaving the company.

iv. Maintenance Contact

The employee must inform his/her Direct Report Manager as soon as possible on the 1st day of his/her absence and during the period of sick leave, the employee is expected to maintain regular contact with his/her Manager/Supervisor (or make other suitable arrangements) in order for the Manager / Supervisor to know the employee's health condition and expected date of return to work. Sick leave benefits are contingent upon maintenance of regular contacts.

v. Fitness Certificate

Depending on the nature of illness, the HR Department will require the employee to obtain fitness certificate from the Company Doctor to return to work. Reporting Managers may seek help from HR Department to verify the authenticity of the medical certificate if required. HR Department may seek a second opinion from an alternative competent medical practitioner nominated by the company on the merits of a Sick Leave application, in case of necessity.

vi. Abuse of Sick Leave

It is important that all employees understand sick leave requirement and provisions, and that the leave privilege is not abused. Management is responsible for monitoring the continued use of sick leave closely. The following actions are involved in this process.

Abuse Indicators

- a. Little or no sick leave balance due to sick leave being taken as soon as it accrues.
- b. Reports sick the day before or following a holiday or vacation period.
- c. Sick leave taken frequently on the day after or before the weekly/festival holiday.
- d. Sick leave taken after requests for either annual/casual leave is refused.

NOTE:

Management monitoring the above indicators should look for consistent patterns. Infrequent use of sick leave in any of the above situation should not be considered abusive action.

Follow-up-Actions

Once a Supervising Manager has reasonable cause to believe that an employee is abusing sick leave, he or she shall take the following steps.

- Carefully document all dates and amounts of leave taken by the employee.
- Meet the physician who recommended his leave and discuss with him about the employee. Meet the employee involved. Mention any patterns which have caused concern but do not accuse the employee of abuse. Give the employee an opportunity to explain his or her position. If personal reasons are involved, consider whether you should refer the employee for counseling.

If abuse continues after the employee has been warned of your concerns, inform the HR Department, who will consider possibilities of other actions.

vii. Accident Leave

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Absence on account of injury within the course of employment and duly certified by Registered physician will not affect an employee's sick, annual or casual leave. It should be treated as Accident leave with full pay. In this case the Labor Laws relating to Workmen Compensation should be followed strictly for non-management staff and for the management staff, management discretion should be applied.

viii. Special Sick Leave

In cases of prolonged sickness, the Company may grant special sick leave case to case basis subject to Management's approval for the major diseases Tuberculosis, Heart Diseases, Cancer, Heart Attack, Stroke, Coronary Artery (Bypass) Surgery, Kidney Failure and any serious cases, if recommended by registered physician in consultation with a specialist.

c. Annual Leave

i. Policy Statement:

Employees at all position should be encouraged to avail annual leave to enable them to spend a reasonable period of time with their family and be out of monotonous life which in turn will help increase their productivity.

ii. Entitlement:

Every employee who has completed a period of 1 (one) year continuous service in this company, shall be allowed, during the subsequent period of twelve months, leave with full salary or wages for a number of days calculated at the rate of 1 (one) day for every 18 (eighteen) days of work.

iii. Leave Terms and Procedures:

a. Application

Application for annual leave should be in the prescribed form and approved at least 3 days/one week before the leave is enforced. A period of such leave shall be inclusive of any holiday, which may occur during such period. Any annual leave applied for by an employee but refused by the management for any reason, shall be added to the credit of such worker beyond the aforesaid limit. (Ref: BLA 2006 Sec-117(7))

b. Carry Forward

The balance of unused annual leave will be carried forwarded to the succeeding year subject to a maximum total accumulated balance of 60 days for head office employees and 40 days for factory employees. (Ref: BLA 2006 Sec-117(4) & (5)(a)(b))

iv. Payment against un-availed Annual Leave

- If the services of an employee, to whom any annual leave is due, is dispensed with whether as a result of retrenchment, discharge, removal, dismissal, termination, retirement or by reason of his resignation before he has availed of any such leave, the company shall pay his/her salary or wages in lieu of the unavailed leave at the rate he is entitled to the payment of salary or wages during the period of leave. (Ref: BLA 2006 Sec-107)
- All eligible employee can have payment against unspent annual leave. However, this type of payment can be done only once in a year and not more than 50% of total annual leave, accumulated.

d. Maternity Leave

i. Policy Statement:

A female employee shall be entitled to maternity leave for a total period of 112 days in respect of the period of eight weeks (56 days) preceding the expected day of her delivery and eight weeks (56 days) immediately following the day of her delivery.

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ii. Entitlement

To be entitled to maternity leave, a female employee must have to her credit at least six months service with the Company immediately preceding the day of delivery. A female employee will not be entitled to such maternity leave if she has two or more living children. Nevertheless, she would be entitled to other types of leave as per the leave entitlement policy if fallen due as per her leave balance.

iii. Procedure

- 1) The employee must apply in writing in the prescribed form separately for pre-natal and immediately after delivery for post-natal leave supported by certificate from a Maternity Hospital / qualified Gynecologist.
- 2) Subsequently within seven days of delivery of the child, the employee must submit a certificate from attending Maternity Hospital/qualified Gynecologist confirming that she has given birth to a child.
- 3) Depending on the circumstances and time, the employee may be allowed to proceed on leave from the day following her submission of application, if not notified in advance. Advance notice of pregnancy and maternity leave is however, preferred.

iv. Payment

- 1) She will be allowed on request payment within three working days for 8 weeks pre-natal leave in advance at the time of proceeding on leave and also for 8 weeks post-natal leave immediately after the child birth.
- 2) A female employee shall not be entitled to any maternity benefit or any part thereof, the payment of which is dependent up on the production of proof that she has given birth certificate or death certificate to a child, unless such proof is produced within three months of the day of delivery.
- 3) If the female employee dies at the time of delivery or during the next period of eight months, the Company shall pay the amount of maternity benefit due, if the newly born child survives her; to the person nominated by her duly or her legal representative.
- 4) If a female employee dies before giving birth to a child, the Company shall be liable only for the period up to and including the day of her death, provided that any sum already paid to her in excess of such liability shall not be recoverable from her legal representative or any amount due at the time of employee's death shall be paid to the nominee or her legal representative.
- 5) Charges for consultation, medicine, treatment, delivery in connection with pregnancy and miscarriages, abortive measures of birth, whether premature or normal is not provided by the Company.
- 6) The average rate of maternity benefit should be calculated by dividing last month total wages of the employee by 26 days = 1 day's average wages will be determined immediately preceding the date on which she gives notice by the number of days she actually worked during the day.

v. Restrictions

The Company shall not engage any female employee for doing any work which is of arduous nature, or which involves long hour

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of standing or which is likely adversely affect her health if:

- a. she has informed the Company that she is likely to be delivered of a child within ten weeks.
- b. she has to the knowledge of the Company been delivered of a child within the preceding ten weeks.

The Company should take enough care not to give any notice or order of discharge, dismissal, removal or termination of employment within a period of six months before and eight weeks after the delivery without sufficient and justifiable cause of doing so otherwise she cannot not be deprived of any maternity benefits under this policy.

e. Compensatory Leave/Holiday

i. Policy Statement:

If any employee is deprived of any the weekly holiday or Festival holiday, he/she shall be allowed as soon as circumstance's permit, compensatory holidays of equal number to holidays so deprived of.

ii. Compensatory Weekly Holiday

If weekly leaves cannot be given to the Employees, the due leaves must be given to them within the next 3 (three) working days. No Employee cannot be made to work for more than 10 (ten) days consecutively without giving him/her the weekly leave. The dues of exempted employees must be paid to the workers within 30 days of receiving any weekly leaves with compensation facilities.

iii. Procedure

If any employee enjoys compensatory leave, he/she must submit a leave application form.

iv. Payment against un-availed holiday

If the job of any employee gets terminated before enjoying the leaves with Compensation against weekly/festival holiday, the employee has to be paid full salary or wages for the unconsumed/unenjoyed leaves along with paying all other dues.

f. Special leave

Special Leave may be granted to an employee with a maximum limit of 60 (sixty) days on account of Pilgrimage, training, professional course, research study, higher education or and for any extenuating circumstances which requires special consideration and approval of top management. However, Special Leave shall be granted for the number of days only after adjustment of due leave of an employee and rest of the day/s (if needed) to be considered as Leave without Pay (LWP).

g. Festival Holidays

i. Policy Statement:

Every employee shall be entitled at least 11 (eleven) days Festival Holidays with full salary or wages in a year. Holidays declared by the Govt. beyond the Company listed holidays, are not applicable.

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ii. Procedure

The management shall fix the leaves of festival for the next year within 31 December of each year on the basis of Holidays declared by the Government of Bangladesh

- 1) Holiday(s) falling on weekly holiday will not be substituted / replaced.
- 2) One (1) day alternative leave with two days compensatory wages/salary shall be paid to all such affected employees if they are made to work on any festival holiday. (Ref: BLA 2006 Sec- 118 (3).
- 3) Should a festival holiday fall during an employee's scheduled annual leave, the day will not be counted as leave.

A management employee required to work on a scheduled holiday will be treated at the sole discretion of the management.

h. Leave Without Pay and Unauthorized Absence

i. Policy Statement:

Leave without pay is an absence for which the employee concerned is not entitled to the payment of usual salary/wages. Such leave may be granted even though, there are sufficient paid leave in the credit of the employee or when there is no leave due, depending on the circumstances.

ii. Circumstances

Leave without pay may be granted under the following circumstances:

1. When there is no sufficient paid leave in employee's credit:

- For genuine illness - absence recommended by registered physician.
- To appear in the University, or any other examinations.
- A much unexpected, prolonged absence required by unavoidable circumstances.

Eligibility & Limitation:

- *To be eligible for leave without pay for the above reasons, the employee concerned must have a satisfactory past record of employment with the Company.*
- *Such leave will not be granted to an employee who is habitually irregular and often remain absent from duty in an unauthorized manner and avail his paid leave entitlement of full year in a few months. Such employee should rather be marked unauthorized absence and award the treatment as laid down under the relevant policy.*

2. When there is sufficient paid leave in the employees' credit:

- To regularize an absence for more than 3 days which did not have prior approval or information but being somewhat satisfied with the explanation put forward by the employee for his inability to obtain prior approval or keep the management informed.
- To regularize short absence up to 3 days of an employee whose past record indicates that he frequently remained absent without intimation or approval and subsequently regularized such absence by putting in casual leave application.
- An employee in such circumstances would be awarded leave without pay for once or twice as an advance warning to treat his future such absence as unauthorized, which will make him liable for disciplinary action.

iii. Entitlement

Entitlement in the case of leave without pay.

- a) No basic and other regular monthly allowances would be paid.

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- b) If the leave without pay is for more than 30 days, then annual, casual or sick leave will not be accumulated/accrued for that period.

iv. Unauthorized Absence- Leave without pay VS unauthorized absence

- a) Leave without pay is an authorized leave of absence granted to an employee with the curtailment of pay and allowances as stated above while unauthorized absence is an absence without prior permission and which has not been subsequently approved or regularized.
- b) It should be noted that any unauthorized absence subsequently regularized as leave with or without pay no longer remains an offence by itself though it may be a supportive document for further similar offence.
- c) To charge an employee for habitual absence without leave, record must be built up for habitual unauthorized absence which should not have subsequent regularization / approval and the employee is informed accordingly as per the official letter.

In the case of unauthorized absence, the employee will not get any salary or allowance of any type. It should be on the basis of "no work no pay."